

## **Part 7**

### **Duties of Prescribed Building Professional and Prescribed Registered Contractor**

#### **Division 1—Application**

##### **40. Application of Part 7**

This Part applies only to minor works commenced or carried out under the simplified requirements.

#### **Division 2—Duties to Supervise Minor Works and Appoint Technically Competent Person**

##### **41. Interpretation of Division 2**

In this Division, a reference to a prescribed building professional appointed under section 27 includes a prescribed building professional nominated to act in the place of another prescribed building professional under section 4A(5) of the Ordinance.

##### **42. Duty of prescribed building professional to supervise minor works**

- (1) An authorized person or registered inspector appointed under section 27 in respect of any class I minor works must give such periodical supervision and make such inspections as may be necessary to ensure that— (*L.N. 148 of 2011*)
  - (a) the works are carried out in general accordance with—
    - (i) the Ordinance; and
    - (ii) any order made or condition imposed in relation to the works by the Building Authority under the Ordinance; and

- (b) there is no material divergence or deviation from the prescribed plans and details submitted in respect of the works under section 30(c).
- (2) A registered structural engineer appointed under section 27 in respect of any class I minor works must give such periodical supervision and make such inspections as may be necessary to ensure that—
  - (a) the structural works are carried out in general accordance with—
    - (i) the Ordinance; and
    - (ii) any order made or condition imposed in relation to the minor works by the Building Authority under the Ordinance; and
  - (b) there is no material divergence or deviation from the prescribed plans and details submitted in respect of the structural works under section 30(c).
- (3) A registered geotechnical engineer appointed under section 27 in respect of any class I minor works must give such periodical supervision and make such inspections as may be necessary to ensure that—
  - (a) the geotechnical works are carried out in general accordance with—
    - (i) the Ordinance; and
    - (ii) any order made or condition imposed in relation to the minor works by the Building Authority under the Ordinance; and
  - (b) there is no material divergence or deviation from the prescribed plans and details submitted in respect of the geotechnical works under section 30(c).

**43. Duty of prescribed registered contractor to supervise minor**

**works**

- (1) This section does not apply to a registered minor works contractor who is registered under section 11.
- (2) A prescribed registered contractor appointed under section 28 in respect of any minor works must, during the carrying out of the works, give continuous supervision to the carrying out of the works to ensure that—
  - (a) the works are carried out in accordance with—
    - (i) the Ordinance; and
    - (ii) any order made or condition imposed in relation to the works by the Building Authority under the Ordinance; and
  - (b) in the case of class I minor works or class II minor works, there is no material divergence or deviation from the prescribed plans and details submitted in respect of the works under section 30(c) or 33(c).
- (3) A prescribed registered contractor appointed under section 28 in respect of any minor works must—
  - (a) keep records of activities and information relevant to the supervision of the works; and
  - (b) retain the records and information for at least 12 months after the completion of the works.

**44. Duty of registered minor works contractor to carry out minor works personally**

A registered minor works contractor registered under section 11 who is appointed under section 28 in respect of any class III minor works must—

- (a) carry out the works personally; and

- (b) ensure that the works are carried out in accordance with—
  - (i) the Ordinance; and
  - (ii) any order made or condition imposed in relation to the works by the Building Authority under the Ordinance.

**45. Prescribed building professional and prescribed registered contractor must appoint technically competent person**

- (1) If the technical memorandum requires a prescribed building professional appointed under section 27 or a prescribed registered contractor appointed under section 28 in respect of any class I minor works to appoint any technically competent persons to supervise the carrying out of the works, the professional or contractor must—
  - (a) appoint an appropriate number of technically competent persons to give such supervision as may be required under the supervision plan submitted under section 30(d) or 48(2)(b) or (3)(b) on each site for which the professional or contractor is appointed;
  - (b) not less than 7 days before the commencement of the works, notify the Building Authority in writing of the appointment under paragraph (a); and
  - (c) provide the Building Authority with the particulars, qualifications and experience of the persons appointed under paragraph (a) as required by the Authority.
- (2) If there is any change in an appointment made under subsection (1)(a), the person who made the appointment must—
  - (a) within 7 days after the date of the change, notify the Building Authority in writing of that fact; and

- (b) if the change involves the appointment of another technically competent person under subsection (1)(a), provide the Building Authority with the particulars, qualifications and experience of the person as required by the Authority.

**46. Building Authority may reject appointment of technically competent person**

- (1) The Building Authority may reject the appointment of any technically competent person under section 45(1)(a) if the Authority is not satisfied that the qualifications or experience of the person is sufficient for performing the duties required of the person under the supervision plan submitted under section 30(d) or 48(2)(b) or (3)(b).
- (2) If an appointment is rejected under subsection (1), the Building Authority must—
  - (a) notify the person who made the appointment of the rejection by sending a notice by registered post to the last known address of the person; and
  - (b) specify the date of rejection in the notice.
- (3) An appointment rejected under subsection (1) ceases to have effect from the date specified under subsection (2)(b).

**47. Works must not be carried out if appointment of technically competent person is terminated or ceases to have effect**

If the appointment of any technically competent person under section 45(1)(a) is terminated or ceases to have effect under section 46(3), the person who made the appointment must not commence or, if the works have already commenced, must cease the carrying out of any part of the minor works that is under the supervision of the technically competent person until another technically

competent person is appointed under section 45(1)(a) in respect of the part.

### **Division 3—Duties in respect of Appointment and Nomination and Cessation of Appointment and Nomination of Prescribed Building Professional and Prescribed Registered Contractor**

#### **48. Duty of prescribed building professional and prescribed registered contractor on change in appointment**

- (1) This section applies if—
  - (a) a notification of the appointment of a prescribed building professional or prescribed registered contractor (*original appointed person*) has been submitted under section 30(a) or 33(a);
  - (b) the original appointed person—
    - (i) is unable to act, whether by reason of the termination of the appointment or for any other reason; or
    - (ii) is unwilling to act; and
  - (c) another person (*new appointed person*) is appointed under section 27 or 28 in the place of the original appointed person.
- (2) If the minor works concerned are class I minor works and the new appointed person is not an authorized person or registered inspector appointed under section 27 in respect of the works, the authorized person or registered inspector appointed under section 27 in respect of the works must, within 7 days after the date of the appointment, submit to the Building Authority— (*L.N. 148 of 2011*)
  - (a) a notification in the specified form, in which—

- (i) the person who arranged for the works to be carried out has specified the new appointed person as a person appointed under section 27 or 28 in the place of the original appointed person; and
    - (ii) the new appointed person has confirmed the appointment; and
  - (b) if required by the technical memorandum, a revised supervision plan.
- (3) If the minor works concerned are class I minor works and the new appointed person is an authorized person or registered inspector appointed under section 27 in respect of the works, the new appointed person must, within 7 days after the date of the appointment, submit to the Building Authority— (*L.N. 148 of 2011*)
  - (a) a notification in the specified form, in which—
    - (i) the person who arranged for the works to be carried out has specified the new appointed person as a person appointed under section 27 in the place of the original appointed person; and
    - (ii) the new appointed person has confirmed the appointment; and
  - (b) if required by the technical memorandum, a revised supervision plan.
- (4) If the minor works concerned are class II minor works, the prescribed registered contractor appointed as the new appointed person must, within 7 days after the date of the appointment, submit to the Building Authority a notification in the specified form, in which—
  - (a) the person who arranged for the works to be carried out has specified the contractor as a person appointed under



section 28 in the place of the original appointed person;  
and

- (b) the contractor has confirmed the appointment.

**49. Duty of prescribed building professional in case of nomination under section 4A(5) of Ordinance**

If a prescribed building professional (*nominator*) appointed under section 27 in respect of any class I minor works has nominated another prescribed building professional (*nominee*) under section 4A(5) of the Ordinance to act in the place of the nominator, the nominator must, within 7 days after the date of the nomination, submit to the Building Authority a notification in the specified form, in which—

- (a) the nominator has specified the nominee as a person nominated under section 4A(5) of the Ordinance; and
- (b) both the nominator and the nominee have confirmed the nomination.

**50. Duty of prescribed building professional on ceasing to be appointed or nominated**

If a prescribed building professional appointed under section 27 or nominated under section 4A(5) of the Ordinance in respect of any class I minor works ceases to be appointed or nominated, the professional must, within 7 days after the date of the cessation, notify the Building Authority in writing of that fact.

**51. Duty of prescribed registered contractor on ceasing to be appointed**

- (1) If a prescribed registered contractor appointed under section 28 in respect of any class I minor works ceases to be appointed, the contractor must, within 7 days after the date of the cessation—



- (a) deliver to the authorized person or registered inspector appointed under section 27 or nominated under section 4A(5) of the Ordinance in respect of the works a notice, in the specified form, of that fact; and (*L.N. 148 of 2011*)
  - (b) certify in the notice that the works carried out by the contractor have been carried out in accordance with the Ordinance.
- (2) If a prescribed registered contractor appointed under section 28 in respect of any class II minor works ceases to be appointed, the contractor must, within 7 days after the date of the cessation—
  - (a) submit to the Building Authority a notice, in the specified form, of that fact; and
  - (b) certify in the notice that the works carried out by the contractor have been carried out in accordance with the Ordinance.

**52. Duty of authorized person or registered inspector on being delivered notice under section 51(1)**

*(L.N. 148 of 2011)*

Any authorized person or registered inspector appointed under section 27 or nominated under section 4A(5) of the Ordinance in respect of any class I minor works must, within 7 days after the date of receipt of any notice delivered to the authorized person or registered inspector under section 51(1), submit the notice to the Building Authority.

*(L.N. 148 of 2011)*

**53. Works must not be carried out if prescribed building professional or prescribed registered contractor is unable or unwilling to act**

- (1) If—
  - (a) a prescribed building professional appointed under section 27 in respect of any class I minor works has, during the carrying out of the works, become unable or unwilling to act; and
  - (b) no one is nominated to act in the place of the professional,the prescribed registered contractor appointed under section 28 in respect of the works must cease the carrying out of the works until another prescribed building professional is appointed under section 27 in respect of the works.
- (2) If a prescribed registered contractor appointed under section 28 in respect of any class I minor works has, during the carrying out of the works, become unable or unwilling to act, the prescribed building professional appointed under section 27 in respect of the works must cease the carrying out of the works until another prescribed registered contractor is appointed under section 28 in respect of the works.

## **Division 4—General Duties of Prescribed Building Professional and Prescribed Registered Contractor**

### **54. Interpretation of Division 4**

In this Division, a reference to a prescribed building professional appointed under section 27 includes a prescribed building professional nominated to act in the place of another prescribed building professional under section 4A(5) of the Ordinance.

### **55. Duty of authorized person or registered inspector to deliver copy of prescribed plans and details etc. to prescribed registered contractor**

*(L.N. 148 of 2011)*

An authorized person or registered inspector appointed under section 27 in respect of any class I minor works must deliver to a prescribed registered contractor appointed under section 28 in respect of the works— (*L.N. 148 of 2011*)

- (a) a copy of the prescribed plans and details submitted under section 30(c); and
- (b) if required by the technical memorandum, a copy of the supervision plan submitted under section 30(d) or 48(2)(b) or (3)(b).

**56. Duty of person who has prepared plans or documents to provide to Building Authority such information as may be required**

If a prescribed building professional appointed under section 27 or a prescribed registered contractor appointed under section 28 in respect of any minor works has prepared any plans or documents which have been submitted to the Building Authority under this Part or Part 6, the professional or contractor must provide to the Authority such information as the Authority may require with regard to the works.

**57. Duty of prescribed registered contractor to keep record of prescribed plans and details and supervision plans on site**

A prescribed registered contractor appointed under section 28 in respect of any class I minor works or class II minor works must—

- (a) keep on the site on which the works are carried out copies of all prescribed plans and details submitted under section 30(c) or 33(c) and all supervision plans (if any) submitted under section 30(d) or 48(2)(b) or (3)(b); and

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- (b) produce the copies to the Building Authority at such time as the Authority may require.
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